

General Terms of Sale - Voluntary Carbon Offset Service - Belgium

Selectra
66 Sébastien Mercier Street
75015 Paris
France
Simplified Joint Stock Company
Paris RCS 499 807 147

1. Definitions

“Client”: Refers to any legally capable natural person or legal entity subscribing to a carbon offset service from Selectra.

“Contract”: Refers to this agreement consisting of both specific and general conditions.

“Carbon Offset”: Refers to the mechanism by which Selectra commits, through one or more selected partners, to offset a specified amount of CO2 emissions for its Client, estimated based on national average emissions calculations or a personalized estimation of the Client’s emissions.

“Offset Certificate”: Refers to the document, transmitted to the Client in electronic format, guaranteeing that the actions carried out by the Offset Partner have indeed been performed and are sufficient to offset the CO2 emission volumes stipulated in the Contract.

“Offset Partner(s)”: Refers to the organization(s) selected by Selectra to implement and guarantee the carbon offset services requested by its Clients, such as EcoAct, Act Commodities, or any other partner company capable of conducting a carbon offset activity on behalf of Selectra’s Clients.

“Broker”: Refers to the third-party company to which Selectra delegates the routine management of Carbon Offset Contracts subscribed by its Clients:

SPB SAS
71, Colbert Quay
76 600 Le Havre
RCS Le Havre 305 109 779

2. Purpose

The general terms of sale outlined herein detail the rights and obligations of Selectra SAS and its Client concerning the sale of the following products:

- Carbon Offset "Electricity and Equipment";
- Carbon Offset "Gas";
- Carbon Offset "Home and Food";
- Carbon Offset "Electricity and Gas";
- Carbon Offset "Personal";
- Carbon Offset "Energy + Equipment";
- Carbon Offset "Customized".

The Client's acceptance of the subscription to the Carbon Offset service constitutes acceptance of these general terms of sale.

3. Operation of Carbon Offset

The annual CO2 amounts to be offset for each product are calculated based on a national annual emission average, except for the "Customized" carbon offset product.

If the Client has undergone 12 effective monthly withdrawals during a calendar year, the amount of CO2 to be offset for that period equals the total average emissions estimated for the selected product. If only part of the 12 withdrawals has been carried out (e.g., in the case of a subscription or cancellation during the year), a prorated calculation is made to determine the amount of CO2 to be offset.

Selectra provides its Clients with the option to offset their CO2 emissions for a fee. This service is validated through the issuance of Offset Certificates by its designated Offset Partner. The process is structured as follows:

- Project holders for reducing, avoiding, or sequestering CO2 emissions receive from international certification bodies such as Verra (Verified Carbon Standard label), Gold Standard, or the Clean Development Mechanism (CDM), the right to issue carbon credits on their registries, in proportion to the emissions reduced, avoided, or sequestered by the actual realization of these projects.
- Project holders transfer these carbon credits to third parties such as Selectra's Offset Partners.

Selectra's Carbon Offset service consists of (i) acquiring carbon credits, stored in a portfolio, and then (ii) requesting their cancellation from the registries of the certification bodies by the Offset Partner, proportionally to the tonnes sold annually.

Annually, Selectra:

- calculates all the CO2 volumes to be offset for its Clients;
- requests the Offset Partner to cancel a volume of carbon credits proportional to its commitments, and to issue an Offset Certificate;
- transmits this Offset Certificate electronically to its Clients.

4. Offset Partner

Through its Offset Partners, Selectra contributes to financing carbon offset projects. Due to its strong relationship with the energy market, Selectra primarily supports projects related to renewable energy sectors in developing countries.

5. Broker and Contract Life Management

Selectra delegates the management of the Contract life and client relations to the Broker identified in Article 1. The Broker is particularly responsible for sending electronic emails to the Client, setting up monthly withdrawals, managing terminations, handling general inquiries, and broadly all routine aspects of managing the relationship with the Client.

6. Contract Duration

The Contract is concluded for an indefinite period. The terms of termination are determined in Article 11 of these terms.

7. Contract Effectiveness

During the telephone call, Selectra provides the Client with information required under Article VI.45 of the Belgian Economic Law Code.

The Contract is concluded and takes effect from the moment the Client expresses consent through voice recording.

Selectra will provide the Client with a confirmation of the concluded Contract on a durable medium within a reasonable time after the Contract's conclusion. This confirmation contains all the information required under Article VI.45 §1 of the Belgian Economic Law Code.

8. Pricing

The fee Selectra charges for offsetting one tonne of CO2e emissions is determined according to the following pricing schedule:

Offer	Annual Emission Estimate (tons of CO ₂ e)	Monthly Price (inc. VAT in €)
Electricity & Equipment	1,55 tCO ₂ e	2,99 €
Gas	3,87 tCO ₂ e	3,99 €
Home & Food	4,88 tCO ₂ e	4,99 €
Electricity & Gas	5,42 tCO ₂ e	5,99 €
Energy & Equipment	6,61 tCO ₂ e	7,50 €
Personal	9,53 tCO ₂ e	12,99 €
Customized	According to the personalized estimate of the Client's emissions.	€1.67 incl. VAT per month per tCO ₂ e (i.e. €20.04 per year).

This compensation scale may be updated by Selectra on the first of January each year, respecting a notice period of at least one (1) month. The Client has the right to cancel his contract within a reasonable timeframe before the new pricing takes effect, without incurring any fees or penalties.

9. Emission Adjustment

At any time and for any reason, the Client may send a request to the Broker to modify their estimated emissions, using the dedicated email address for managing the Contract life (compensationcarbone@selectra.info). For instance, in the event of moving or changing consumption habits.

The Broker receives the request and reassesses the Client's emissions, and thus the amount paid for the Carbon Offset.

10. Billing and Payment Terms

The amount due by the Client for the Offset Certificate of the month is settled by automatic monthly withdrawal, initiated by the Broker, within a month from the billing date.

11. Termination

11.1 Termination by the Client

The Client may terminate the Contract at any time, without an exit penalty, with a notice of fifteen (15) days, by notifying the Broker via email: compensationcarbone@selectra.info.

11.2 Termination by Selectra

Selectra may terminate the Contract at any time, without an exit penalty, with a notice of fifteen (15) days, by notifying the Client by any means.

If the Client fails to meet the payment obligations within the agreed timeframe as stipulated in Article 10, the Contract will be automatically terminated by Selectra.

12. Personal Data

The personal data of Clients are collected in accordance with the General Data Protection Regulation ("GDPR") 2016/679 of the European Parliament.

As the data controller (as defined by the GDPR), Selectra processes personal data only in accordance with the GDPR and/or specific conditions agreed with the Client. When acting as a processor (as defined by the GDPR), Selectra will process personal data provided by the Client only according to the Client's instructions, including conditions agreed upon in a separate contract. Data subjects (as defined by the GDPR) may exercise their rights to access and rectify personal data by contacting Selectra at contact@selectra.info, or by sending a letter to the following address: 66 Sébastien Mercier Street, 75015 Paris.

Client data is collected and recorded by Selectra for the purpose of subscribing to a voluntary carbon offset offer. The data is transmitted by Selectra to the Broker, to manage the daily execution of the Contract.

Personal data is retained for 3 years from the last interaction between Selectra and the Client.

13. Liability

Regardless of legal interpretation, Selectra shall in no event be liable for indirect, incidental, or consequential damages, including, but not limited to, any loss of profits, anticipated savings, or other economic benefits, arising from or in connection with the Contract or any product or service provided by Selectra. Regardless of legal interpretation, the total liability of Selectra for all claims under a Contract shall not exceed the total amount paid by the Client in relation to the products that are the subject of the claim.

14. Force Majeure

Selectra's liability shall not be invoked if the non-performance or delay in performing any of its obligations described in these general terms arises from a force majeure event as defined in Article 5.226 of the Belgian Civil Code.

15. Partial Invalidity

If one or more provisions of these general terms are held to be invalid or are declared such under the application of a law, regulation, or following a final decision of a competent judicial authority, the other provisions shall retain their full force and scope. The ineffective, invalid, or unenforceable provision shall be deemed replaced by a valid and enforceable provision that most closely matches the commercial intent of the affected provision.

16. Applicable Law and Disputes

These general terms are governed by Belgian law. Any dispute relating to their interpretation or execution falls under the jurisdiction of the Belgian courts.